

Zahid Khan v. State of U.P.

Allahabad High Court · Division Bench · 5 March 2018 · Writ-C No. 8159 of 2018 · **Writ dismissed; relegated to Clause 6.5 alternative remedy.**

HEADNOTE

A writ challenging the correctness and accuracy of an electricity consumption bill is not maintainable where Clause 6.5 of the Electricity Supply Code, 2005 supplies a statutory alternative remedy before the competent authority. The petition is dismissed with liberty to avail that remedy.

FACTUAL SUMMARY

Zahid Khan petitioned the Allahabad High Court in writ, challenging the correctness and accuracy of a bill for consumption of electrical energy. The respondents were the State of Uttar Pradesh and four others. Counsel for the petitioner and for respondents 3 to 5 were heard. The order discloses no further particulars of the connection, billing period, or the amount in dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill accuracy — statutory alternative remedy

HOLDING

Where the writ challenges the correctness and accuracy of an electricity consumption bill, Clause 6.5 of the Electricity Supply Code, 2005 affords a statutory alternative remedy of approaching the competent authority; the writ is not to be entertained and stands dismissed with liberty to avail that remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging the correctness and accuracy of an electricity consumption bill is not maintainable where Clause 6.5 of the Electricity Supply Code, 2005 supplies a statutory alternative remedy before the competent authority. The petition is dismissed with liberty to avail that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND ACCURACY OF THE ELECTRICITY CONSUMPTION BILL

Left open for the Clause 6.5 statutory remedy. ¶ 1